

Deposition of Blue Cedar Compliance, Inc. — designation and scope

Q. Please identify the witness and the capacity in which she appears today.

A. Mira Solis is appearing on October 9, 2025 as Blue Cedar Compliance, Inc.'s designated representative under Rule 30(b)(6). This examination is distinct from her September 29 individual deposition. Blue Cedar prepared her through review of company records and interviews with Draven Pike, Naomi Voss, and Sable Finch.

Q. What subjects did the company designate her to address?

A. The company's records and preservation systems; the RIF population and savings models; the written criteria and compliance controls; receipt and routing of Benton's opposition and agency notice; calibration changes and exceptions; selection authority; post-RIF redistribution; explanations for the selection; and the completeness of production on those topics.

Q. Are the answers limited to Solis's personal memory?

A. No. Where she says “the company,” she states Blue Cedar's position after reasonable corporate preparation. Some information came from records or other employees rather than her personal observation. Counsel and the witness will identify a genuinely unknown matter rather than treating the distinction between personal and organizational knowledge as a reason not to answer.

Corporate records and authentication

Q. What systems contain the relevant information?

A. Microsoft 365 mail and calendar exports, the employee-relations drive, the finance planning folder, the AuditBridge project database, approved travel schedules, the training register, and the operations team site containing the native RIF workbook. The team site retains version uploads and audit information, although it does not capture every local draft.

Q. How did Blue Cedar preserve the materials?

A. The January employee-relations hold covered assignment and scoring records. After the February 10 agency notice, the company expanded the hold to RIF planning, staffing communications, and decision materials. Solis maintained the human-resources copy, Finch maintained the finance model, and operations supplied workbook and calibration records.

Q. Does the company authenticate the produced policy, routing log, workbook versions, scorecards, minutes, performance metrics, organization records, and explanation communications?

A. Yes, as records collected from the identified systems and custodians. Authentication does not concede that every assertion in a record is correct or that every item is admissible for every purpose, but Blue Cedar does not claim these materials were fabricated for the litigation.

Covered population and headcount arithmetic

Q. State the size of the covered population when the workbook opened.

A. There were twenty-three authorized operations and support positions: twenty-one filled and two vacant. The manager comparison included Benton, Wynn, Ibarra, and Keene because each managed regulated-client audits, assigned field personnel, and reviewed remediation work.

Q. What did the final B-7 scenario remove?

A. It removed five filled positions and eliminated the two vacancies. The filled positions were Benton, an audit scheduling specialist, a controls documentation lead, a client onboarding analyst, and a vendor coordination specialist. The vacancies were field auditor and project coordinator.

Q. How many filled positions remained?

A. Sixteen. The reconciliation is twenty-three authorized positions equal twenty-one filled plus two vacant; sixteen filled equal twenty-one minus five terminations; and sixteen final covered positions equal twenty-three minus the five terminations and two vacancies. When Blue Cedar used the phrase “seven positions eliminated,” it did not mean seven people were discharged. Five occupants were terminated and two unoccupied positions were removed.

Savings target and modeled alternatives

Q. What savings target did finance establish?

A. \$612,000 in annualized payroll and employer-paid benefit savings. B-7 projected \$618,400. Its seven amounts were \$148,000, \$94,600, \$88,800, \$82,400, \$76,200, \$66,400, and \$62,000.

Q. Was Benton mathematically required to reach the target?

A. No. The nonmanager position base was \$470,400. Replacing Benton with Wynn produced \$609,400 in position savings, Ibarra \$602,400, and Keene \$598,400. A separately modeled \$14,600 archive-hosting expense consolidation raised those alternatives to \$624,000, \$617,000, and \$613,000.

Q. Why did Blue Cedar select B-7?

A. The company's position is that Pike exercised operational judgment about continuity, summer travel, automation support, salary, and transferability. Finance confirmed the arithmetic but did not direct which manager to choose. The archive-hosting amount was an expense saving rather than a position, and Pike rejected the alternative combinations on coverage grounds. Blue Cedar therefore concedes that arithmetic alone did not compel Benton's selection.

RIF criteria and anti-retaliation controls

Q. What criteria governed manager evaluation?

A. Audit completion carried thirty points, client continuity twenty-five, credentials fifteen, cross-region availability fifteen, and role uniqueness fifteen. Higher totals favored retention. The protocol required a cited basis and a version entry for manual changes.

Q. What did the anti-retaliation policy require?

A. It prohibited protected activity from influencing timing, criteria, scoring, selection, or explanation. During the ninety days after notice, human resources was to review proposed changes affecting the employee and identify the decisionmaker, criteria, contemporaneous support, and comparators. The policy did not prohibit a genuine restructuring.

Q. Was Benton's protected activity assigned a score?

A. No. The workbook contained no protected-activity field. Her employee-relations status appeared as a separate human-resources review flag. The absence of a scoring field is not the same as a finding about motive; it establishes only how the written workbook was structured. Blue Cedar's corporate position is that Pike did not use protected activity, while Benton disputes that position through timing, knowledge, calibration, and explanation evidence.

Corporate notice and decisionmaker knowledge

Q. What does Blue Cedar admit about the January complaint?

A. Benton sent the January 17 message, Voss understood it as an allegation of sex discrimination, and Solis opened ER-25-014. The company does not contend that the message was merely an ordinary workload request for purposes of this testimony.

Q. What does the company admit about the agency notice?

A. Blue Cedar received it February 10. Solis routed it to Pike that afternoon. The system recorded an open event February 11, Pike replied that he had received it, and he attended the February 12 meeting concerning preservation, assignment-score sources, staffing planning, and response ownership.

Q. Does Blue Cedar maintain that Pike knew nothing about protected activity?

A. No. Consistent with Pike's deposition, the company admits he knew before March 24 that Benton had raised an internal assignment complaint and that an agency matter existed. Blue Cedar disputes that he studied every allegation when the packet was opened and denies retaliatory use. The company's position is therefore a denial of causal use, not a denial that Pike had general awareness of both matters.

Calibration changes and comparator exceptions

Q. Summarize the changes to Benton's score.

A. Her imported total of 84 fell to 68. Continuity went from 22 to 14, availability from 12 to 6, and role uniqueness from 9 to 7. Completion remained 27 and credentials 14. The changed fields were calibration judgments rather than corrections produced by refreshed quantitative sources.

Q. What happened to the retained comparators?

A. Wynn's continuity increased from 20 to 22 for Lantern, ending May 30. Ibarra's availability increased from 9 to 14 based on offered future travel despite sixteen completed days. Keene's uniqueness increased from 14 to 15 for the automation library without a formal transfer-time estimate. Their final totals were 78, 78, and 75.

Q. What consistency issues did the company identify?

A. Solis flagged the later dates of Benton's transitions, completed versus promised travel, and the absence of an automation transfer estimate. She certified formula reconciliation, not a finding that treatment was consistent. Pike approved the entries under "business continuity." Blue Cedar authenticates that sequence while maintaining that the judgments were legitimate.

Selection authority and effective dates

Q. Who approved the manager selected in B-7?

A. Pike approved it on March 21 after Finch confirmed the arithmetic and Solis supplied the variance audit. Human resources could flag issues, but it did not have authority to substitute a different manager. Finance could reject a calculation, but it did not command Benton's selection.

Q. When did Benton's employment end?

A. March 24. The termination letter was effective that day. The April 1 date in the final workbook was the payroll-model date used for annualized projections; it was not a second termination date.

Q. Was the selection disciplinary?

A. No. The termination register says performance action "none" and rehire eligibility "yes." The letter cited budget savings and redistribution of management responsibilities. Blue Cedar's later position included completion and availability as supporting aspects of the calibrated decision, but the company identifies no disciplinary record and no contemporaneous client complaint. It also concedes that the five manager criteria did not operate as a mechanical lowest-score rule.

Redistribution and explanation history

Q. What happened to Benton's work after March 24?

A. Northline moved to Wynn, Oriole to Ibarra, the remediation-review queue to Keene, and the monthly quality meeting to Voss. The March 25 message said clients should be told the change was organizational alignment rather than a quality concern. No new audit-manager position was created.

Q. Did the underlying functions end?

A. No. The clients and review work remained active. By May 31, the ledger showed transferred matters continuing and forty percent of Benton's recorded client hours assigned to Wynn, thirty-five percent to Ibarra, fifteen percent to Keene, and ten percent to Voss.

Q. How did the stated rationale develop?

A. The March 20 email emphasized salary and management consolidation. The March 24 letter used budget savings and redundancy. The April response added relative completion and availability. Pike's July interview added client confidence, though no client complaint was identified. Blue Cedar characterizes these as details of one RIF reason; it concedes the additional terms appeared at different times and that their dated records must remain distinct.

Production completeness and corporate corrections

Q. Has Blue Cedar produced the nonprivileged records located for the designated subjects?

A. Yes, after searches of the identified custodians and systems. The production includes native workbook information, version history, message metadata, policies, scorecards, minutes, assignment records, performance data, headcount records, and the communications explaining the selection. The company does not claim that every local draft was retained outside the systems described.

Q. What subjects did the August 15 disclosures identify for Wynn?

A. Her duties, source metrics, calibration score, continuity exception, and retained assignments. As of this testimony, Blue Cedar's produced records identify no separate Wynn subject concerning a statement that protected activity affected selection. The company reserves the duty to respond to materially new information if it is later disclosed.

Q. Does the corporation make any correction to this testimony?

A. Yes. February 11 was the packet open event and Pike reply; the meeting was February 12. Keene held the earlier Lantern engagement-lead entry, while Wynn later owned the Lantern transition. March 24 was Benton's termination date, and April 1 was the modeled payroll date. Subject to those clarifications, these answers state Blue Cedar's prepared corporate positions.